

**\*\*01.11.2021\*\***

**\*\*Sanction for Violation of GDPR\*\***

On 01.10.2021, the National Supervisory Authority completed an investigation into the operator S.P.E.E.H. Hidroelectrica S.A. and found violations of the provisions of Article 32 paragraph (1) letter b) and paragraph (2) of the General Data Protection Regulation (GDPR), as well as violations of the provisions of Article 5 paragraph (1) letter a) and Article 6 paragraph (1) of the GDPR.

The operator S.P.E.E.H. Hidroelectrica S.A. was sanctioned as follows:

- a fine of 24,739.50 lei, equivalent to 5,000 EURO, for the violation of the provisions of Article 32 paragraph (1) letter b) and paragraph (2) of the GDPR;
- a warning for the violation of the provisions of Article 5 paragraph (1) letter a) and Article 6 paragraph (1) of the GDPR.

The investigation was initiated following the operator's submission of several notifications of personal data security breaches. The national supervisory authority found that the operator had not implemented appropriate technical and organizational measures to ensure a level of security commensurate with the risk presented by the processing.

This situation led to the unlawful access or disclosure to incorrect recipients of the personal data of 325 individuals.

Additionally, the operator processed the personal data of 3 individuals, its own clients, after they exercised their right to data deletion and withdrew their consent for data processing. Thus, the processing was carried out without the existence of any of the legal grounds provided by Article 6 paragraph (1) of the GDPR, although the operator had the obligation to process the data lawfully, fairly, and transparently concerning the data subject.

At the same time, the operator was also subjected to the following corrective measures:

- review and update of the technical and organizational measures implemented as a result of the assessment regarding the risk to the rights and freedoms of individuals, including the working procedures related to the protection of personal data, as well as the implementation of measures regarding the periodic training of individuals acting under its authority concerning the obligations arising from the provisions of the GDPR, including regarding the risks associated with the processing of personal data, depending on the specifics of the activity;
- identification and implementation of measures to ensure that the personal data processed are accurate and up to date, considering the purposes for which they are processed, including regarding the record of the exercise by the data subjects of their right to deletion of personal data.

**\*\*Legal and Communication Department\*\***

**\*\*N.S.A.P.D.C.P.\*\***